

		transfer. The settlement agreement was not provided with the petition. Identification of all payments to which Payee is entitled under the settlement and annuity, all payments Payee has received, all payments Payee will receive in the future, and any payments Payee previously has transferred is an essential component of her financial circumstances. Furthermore, copies of the annuity contract and/or qualified assignment agreement were not submitted with the petition and Petitioner fails to state what efforts were made to locate these documents. The conclusory statement that Payee looked is not sufficient. (Ins. Code § 10139.5, subd. (f)(2)(E), (F), (H).) The court needs more information about Payee's financial circumstances and a greater explanation about how this proposed transaction is fair, reasonable, and in Payee's best interest before this transaction can be approved, if at all. Indeed, the court is not convinced at this point that the terms, as described above, are in Payee's best interest. Accordingly, Petitioner and Payee are ordered to file additional declaration(s), modified documents and any other documents needed to provide the court with the foregoing information about Payee's financial condition and to demonstrate the transaction is fair and reasonable and in Payee's best interest. All filings are ordered to be filed and served at least 20 days before the continued hearing date. Based on the foregoing, the petition is CONTINUED as set forth above. Petitioner's counsel is ordered to give notice.
6.	<i>In Re: CBC Settlement Funding, LLC</i> <i>2026-01559765</i>	<u><i>Please see notice above regarding oral argument on this motion/petition</i></u> Before the court is the petition of petitioner CBC Settlement Funding LLC (Petitioner) for court approval of proposed transfer of one lump sum payment real party in interest and payee Brandon Thompson (Payee) is scheduled to receive under a structured settlement. As more fully set forth below, the hearing on the petition is CONTINUED TO AUGUST 13, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Petitioner to provide additional information necessary to enable the court to determine whether the required findings can be made. In these proceedings, Petitioner seeks court approval for Payee to transfer the rights to one, guaranteed lump payment of \$375,000 due on July 6, 2046. The payment has a discounted present value of \$150,338.27. In

		exchange for transferring the right to receive this payment, Payee would receive a present, lump sum payment of \$72,000, which represents 47.9 percent of the payment's present value and equates to an equivalent interest rate of 8.5 percent if Payee were to take a loan. Insurance Code section 10139.5, subdivision (b), requires the court to consider a variety of circumstances, including Payee's financial and economic situation, to determine whether the transfer is fair and reasonable, and in the best interest of Payee. Petitioner and Payee, however, have failed to provide sufficient information for the court to make such a determination. Payee does not state his age (as required by Ins. Code §10139.5, subd. (c)(1)), whether he owns an interest in the home located at 122 E Avenida Cornelio, San Clemente, CA 92672, whether anyone else owns or lives with him at the residence, whether there is a mortgage and who pays for the mortgage, whether Payee has any source of income or financial resources other than his employment with CAL FIRE, and Payee's monthly expenses. Such information is necessary to determine Payee's financial and economic situation. The court needs more information about Payee's financial circumstances and a greater explanation about how this proposed transaction is fair, reasonable, and in Payee's best interest before this transaction can be approved, if at all. Indeed, although the payment to be transferred is 20 years in the future, it is not a life contingency payment and Payee is not even receiving 50 percent of the present value. Accordingly, Petitioner and Payee are ordered to file additional declaration(s) and any other documents needed to provide the court with the foregoing information about Payee's financial condition and to demonstrate the transaction is fair and reasonable and in Payee's best interest. All filings are ordered to be filed and served at least 20 days before the continued hearing date. Based on the foregoing, the petition is CONTINUED as set forth above. Petitioner's counsel is ordered to give notice.
7	Gouvis Engineering Consulting Group, Inc. vs. Deihimi 2016-00892751	<u>Please see notice above regarding oral argument on this motion/petition</u> Before the court is the "Third Party Claim (CCP 720.110, 720.130, 720.230)" filed by "Amir Deihimi, president of Core Structure, Inc., as Trustee" and the notice of hearing and opposition to the third party claim filed by plaintiff and